



February 5th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=QZcFR77Id_0
Publication Date	2018-02-06T21:00:54Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: Monday, February 5, 2018

Meeting Time: 9:00 AM

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The Delaware County Commissioners meeting was called to order at 9:00 AM on Monday, February 5, 2018, by the presiding officer. The meeting opened with the Pledge of Allegiance.
- **Attendance:**
 - **Board Members Present:** Mr. Henry, Ms. Regan, and Mr. King (Presiding Officer).
 - **Board Members Absent:** None noted.
 - **Presiding Officer:** Mr. King.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Plummer.

- **Approval of Minutes:**
 - Regular meeting minutes from January 16, 2018, and executive session minutes from January 17 and January 23, 2018, were approved.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote recorded: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
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3. Substantive Business & Board Action

Appointments

- **00:01:02 Delaware County Community Corrections Board Appointments**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Appointment of Ken Mates and Gen Answer to the board.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
 - **00:01:30 Visitors Bureau Appointment**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Appointment of Dodi Clevenger to the Visitors Bureau.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
 - **00:01:50 Yorktown Public Library Board Appointment**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Board requested to table the appointment for the time being.
 - **Action & Vote Disposition:** Tabled by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
 - **00:02:07 Tabling of Ongoing Items**
 - **Sponsor / Presenter:** John / Board Commissioners.
 - **Deliberation Summary:** The opioid litigation agreement and Medicaid items remained tabled as staff continues work on them.
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Presentations

- **00:02:50 Delaware County Veterans Affairs Annual Report & Testimony**
 - **Sponsor / Presenter:** Nate Jones (Director, Delaware County Veterans Affairs) and Michael Myers (Army Veteran).
 - **Deliberation Summary:** Michael Myers shared personal testimony regarding the exceptional support received from the Delaware County Veterans Service Office compared to other states. Nate Jones presented the office's 2017 metrics, noting three full-time employees, ten federal work studies, interns, and volunteers totaling

389 work hours per week. In 2017, the office brought in roughly \$3 million in local veteran benefits for the final quarter, with 2018 projections exceeding \$13 million. The office expanded its scope into educational assistance, employment support, drug diversion court, a women veterans group, resource fairs, and homeless veteran support. Donations exceeded \$20,000 in wheelchairs and lifts. Future goals include addiction recovery grant funding, reliable transportation solutions, a Veterans Day Parade, and gainful employment placement.

- **00:08:35 SRI Tax Sale Presentation**
 - **Sponsor / Presenter:** Joe Edward (SRI).
 - **Deliberation Summary:** Presented the tax sale portfolio consisting of 571 tax lien certificates representing \$2.6 million in outstanding taxes. The proposal is to conduct a live public auction in late April or mid-to-late May to move properties back onto the tax rolls. Proposed minimum bids are set at \$100 for liens under \$1,000, and 10% of the assessed value for liens over \$1,000.
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Contracts, Grants & Agreements

- **00:18:35 Comprehensive Financial Plan Agreement**
 - **Sponsor / Presenter:** Brad Bookout (Economic Development / Redevelopment).
 - **Deliberation Summary:** Standard scope of services agreement to update the county financial plan (previously performed two years prior).
 - **Action & Vote Disposition:** Tabled by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
 - **00:22:48 Fieldwire Federal Interest Agreement / Court Text & Call Reminders**
 - **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** The County Council budgeted a pilot program for Circuit Court 2 and the 4D Court to implement automated reminder calls to defendants to reduce failure-to-appear rates and alleviate jail overcrowding. The original text-message vendor went out of business, prompting a pivot to "Fieldwire" phone call reminders (following Hamilton County's model). Four contracts/amendments covering both courts were presented for approval.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
 - **00:24:48 Union Contract Extension Agreement (9-11 Center)**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Extends the union agreement with IDMS/9-1-1 dispatchers through March 2nd to allow ongoing negotiations.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
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Ordinances & Resolutions

- **00:25:34 Ordinance 2018-001: Subdivision Ordinance Amendment**
 - **Sponsor / Presenter:** Martin Moody (Delaware-Muncie Metropolitan Planning Commission).
 - **Deliberation Summary:** Continuation of a public hearing process. Introduces procedural changes to the county subdivision ordinance mirroring Muncie city code, allowing property transfers between owners without triggering full subdivision processes, and establishing provisions for minor plats (4 lots or fewer with no public infrastructure added) to be handled by a plat committee. The Plan Commission gave a unanimous favorable recommendation.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
- **00:27:37 Ordinance 2018-002: Juvenile Court Family Recovery Grant Fund**
 - **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** Establishes a fund to receive federal and state grant monies awarded to the juvenile court for a family court recovery project. Rules were suspended to allow immediate adoption.
 - **Action & Vote Disposition:** Rules suspended and Ordinance adopted by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
- **00:29:10 Resolution 2018-006: Parcels Offered to Adjacent Property Owners**
 - **Sponsor / Presenter:** Janet Kessler (Auditor's Office).
 - **Deliberation Summary:** Identifies a single parcel left off the original list that has an interested adjacent buyer.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
- **00:29:58 Resolution 2018-007: Intent to Conduct Commissioner Certificate Tax Sale**
 - **Sponsor / Presenter:** Janet Kessler (Auditor's Office).
 - **Deliberation Summary:** Formal request and establishment of intent to conduct the commissioner certificate sale for severely delinquent tax properties.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).

Department Reports & Claims

- **00:31:18 Weights & Measures Monthly Report:** Received by the board.
 - **00:31:25 Payment of Claims:** Claims presented in the amount of \$1,037,566.10.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call vote: Mr. Henry - Yes; Ms. Regan - Yes; Mr. King - Yes).
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4. Open Public Comment / Citizen Forum

- **00:32:06 Dave Bramer** (Eaton/Wheeling rural area / State Senate candidate)
 - Addressed the board regarding a proposed Confined Animal Feeding Operation (CAFO) near 1270 North. Argued that CAFOs threaten property values, rural infrastructure, public health, and local population retention. Urged the commissioners to enact an indefinite moratorium or outright ban, noting that counties like Bartholomew and Randolph have enacted moratoriums.
- **00:39:53 Robert Ray** (Resident living adjacent to the proposed CAFO site)
 - Spoke as an immediate neighbor to the proposed CAFO site. Highlighted that 129 homes sit within one mile of the proposed facility, sitting over a shallow, highly vulnerable 30-to-70-foot bedrock aquifer. Raised concerns over ammonia levels, well contamination, 50%<U+2013>90% property value loss, road/bridge destruction from heavy truck traffic, and alleged prior property violations and nuisances by the operators (Red Light Farms). Submitted a packet to the board.
- **00:35:03 Doug Short** (Family farm owner near 100 West, 0.7 miles from proposed CAFO)
 - Expressed deep concerns regarding road degradation, weight limits, bridge capacities, drainage issues, and the negative economic impact of CAFOs. Requested that no local permits be issued and endorsed calls for a moratorium, stronger zoning, and an outright ban.
- **00:33:03 Travis Graves** (Resident)
 - Voiced opposition to industrial CAFOs on behalf of younger residents, arguing that CAFO jobs do not constitute “gainful employment” and damage community quality of life. Urged commissioners to exercise local control and stand against the industrial farming influx regardless of potential legal threats.
- **00:35:31 Jim Harker** (Eaton resident, 12605 N. Chestnut St.)
 - Emphasized that CAFOs represent heavy industry rather than traditional farming. Warned that if Delaware County permits one CAFO, it will become a target for more. Called for a total ban or protective moratorium.
- **00:37:57 Rich Enter** (Resident)
 - Discussed the lack of public transparency surrounding the CAFO project and advocated for establishing additional early voting sites outside the county building to increase voter engagement and democratic participation.

(Note: In response to public comments on CAFOs, Planning Director Martin Moody and the Commissioners noted that while state agency IDEM heavily regulates CAFOs, local zoning tools such as setbacks are being actively researched, though a moratorium falls outside commissioner purview and legal counsel must be consulted regarding litigation risks.)

5. Administrative Updates & Adjournment

- **Announcements:** None.
 - **Adjournment:** The meeting was recessed/adjourned by voice vote (00:59:20).
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